

Forensic Analysis of the 1962 Possession Order

Forensic Analysis of the 11 December 1962 Possession Order

Great House Farm (Tŷ Mawr), Llandough

22 September 2026

The 1962 order is the beam every later step against Mary rested on, and it was never built to carry that weight. It was made without any recorded proof that Western Ground Rents owned the house parcel, on an unstated legal basis, in a court whose power over a disputed-title claim is doubtful. It was then used for 25 years as if it had settled her ownership, which it never did.

Key. Each point is rated *Strong* (a real defect if the facts check out), *Arguable* (sound in principle, depends on unseen records) or *Weak*. Each is tagged **Fact** (in the 1987 judgment), **Family evidence** (seen by Hywel, copy to be produced), **Contention** (family position, not yet documented) or **Hypothesis** (untested).

1. The order at a glance

Everything below comes from Dillon LJ's recital in *BP Properties Ltd v Buckler* [1987] EWCA Civ 2. The order itself has not been seen; the blank rows are what the Glamorgan Archives file must answer.

Feature	What is known	Status
Date	11 December 1962	Fact
Court	Cardiff County Court	Fact
Judge	Judge Temple Morris QC	Fact
Claimant	Western Ground Rents Ltd (WGR)	Fact
Defendants	Frederick Buckler and “Mrs Buckler” (Mary), jointly	Fact
Land claimed	“The farmhouse and garden”	Fact
Relief	Possession, plus mesne profits “since 1955”	Fact
Cause of action pleaded	Not recorded	Unknown
Proof of WGR’s title to the house parcel	Not recorded	Unknown
Whether Mary was served, appeared, defended or was defaulted	Not recorded	Unknown
Plan attached	Not recorded	Unknown
Amount of mesne profits	Not recorded	Unknown
Net annual value of the land (jurisdiction)	Not recorded	Unknown
Enforcement	Money partly pursued against Frederick (1963); possession never executed	Fact

In plain English: This is the court order that told Frederick and Mary to leave the house and pay back-rent. We know who, when and where. We don’t know the most important things: why the judge said the company could have the house, whether the company ever proved it owned it, and whether Mary was even there to argue. Half the table is blank, and those blanks are where the flaws hide.

2. What the order stood on

The 1962 order only works if the farm was still one unit in 1962, as it was in 1916. Every link from 1928 onwards points the other way, and none of them was put before the 1962 court so far as the record shows.

Year	Event	Status	What 1962 needed it to mean	The problem
1877	Agreement tied to limestone quarrying: the Williams-occupied parcel passes to the Williams family when quarrying ends	Contention (papers missing)	Nothing	Never addressed
1916	Marquis of Bute lets the whole farm, both parcels, to John Williams on a yearly agricultural tenancy	Fact	The tenancy still covered the house in 1962	True only until 1928
1928	Last quarry machinery leaves; John Williams takes the house parcel and stops paying rent on it	Contention	Nothing changed	Ignored
1938	Reversion conveyed to WGR	Fact (sale); Contention (extent: eastern parcel only)	WGR bought the house parcel	Conveyance plan not produced in 1962 or 1987
1939	Revised tenancy of the fields east of the house parcel only	Family evidence (seen by Hywel)	The house was in the tenancy	Directly contradicts it
c.1940	12 years of rent-free occupation of the house parcel complete	Contention	No adverse possession had run	WGR's claim to the house barred 22 years before 1962
1949	John Williams surrenders; new yearly tenancy to Frederick	Fact (tenancy); Hypothesis (extent)	Frederick's tenancy included the house	If it replaced the 1939 tenancy, it was fields only
1955	Notice to quit expires; High Court order against Frederick alone over the "whole farm"; house not taken	Fact	Frederick's household held the house under his tenancy	Bound Frederick only; read strictly, the farm let in 1955 was the fields
1959	Mary asserts ownership and refuses a tenancy of the farmhouse and garden	Fact	She was a holdover occupant	An owner refusing to rent her own home

In plain English: Think of the 1962 order as the top floor of a building. For it to stand, every floor underneath has to hold. The company's floors were the 1916 rental of the whole farm and the 1955 order against Frederick. But in 1928 the house parcel went to the Williams family, and the 1939 rental agreement only covered the fields. So from 1928 the company was standing on floors that had already been taken away. Nobody showed the 1962 judge any of this.

3. Jurisdiction flaws

The county court may not have had power to make this order at all. Want of jurisdiction is the one defect that can make an order void, not merely wrong.

3.1 Net annual value cap on land and title claims — Strong if the value exceeded £100 (Hypothesis)

In December 1962 a county court could hear an action to recover land, or any action in which title to a hereditament came in question, only up to **£100 net annual value for rating** (County Courts Act 1959). The cap rose to £400 only under the County Courts (Jurisdiction) Act 1963. Mary had been asserting ownership since at least 1959, so title was squarely in question. The 1955 claim over the whole farm had gone to the High Court; the 1962 claim for the house went to the county court. If the house and garden were rated above £100, or a genuine title dispute went ahead without transfer or a signed memorandum submitting to jurisdiction, the court was not competent.

Check the 1956 valuation list for **the farmhouse and garden hereditament only**. The fields had been recovered in 1955 and may have been separately assessed.

In plain English: In 1962 the local court was only allowed to decide cases about land worth up to about £100 a year in rent value. Bigger cases, or fights over who owned the land, had to go to the High Court. Mary said she owned the house, so this was a fight over ownership. If the house was worth more than the limit, the local judge was like a referee officiating a match he wasn't allowed to referee, and his decision wouldn't count. The old rates books will tell us.

3.2 Title was in question but not tried — Arguable (Fact / inference)

Even within the value limit, a court whose jurisdiction depends on title being in question must actually decide the title question. Nothing in the record suggests the 1962 court construed the 1938 conveyance, the 1939 tenancy, or Mary's claim. A court that takes jurisdiction because of a title dispute, then never decides it, has done only half its job.

In plain English: If the court's whole reason for hearing the case is "these people disagree about who owns the house," it has to answer that question. There's no sign it did. It just said "out."

3.3 Money limit on the mesne profits claim — Arguable (Hypothesis)

The county court's limit in contract and tort was **£400** from 1955, raised to £500 in 1965. Mesne profits for about seven years (1955–62) could exceed £400 if the annual value approached £60. WGR could have abandoned the excess, and mesne profits joined to a possession claim may have fallen within the land jurisdiction instead. The plaintiff will show the sum claimed and any abandonment.

In plain English: The court also had a money limit, £400. Seven years of back-rent might have gone over it. The company could have agreed to take less, so this only matters if the papers show they claimed more than the court could award.

3.4 Territorial jurisdiction — Weak (Hypothesis)

A recovery-of-land action had to be brought in the county court for the district where the land lay. Llandough was very probably within the Cardiff district in 1962, and an objection had to be taken promptly or was waived.

In plain English: You had to sue in your local court. Llandough was almost certainly Cardiff's patch. Worth a quick check, nothing more.

3.5 Jurisdiction not shown on the face of the order — Weak on its own (Hypothesis)

Inferior courts were historically expected to show the facts founding their jurisdiction on the face of their proceedings. Statute softened this for county courts, so it strengthens 3.1 rather than standing alone.

In plain English: A small court is meant to show it had the right to hear the case. If the order doesn't say what the house was worth, it never proved it had the power. That supports the bigger point above.

4. Title and parcel flaws

This is the heart of it. The order gave WGR possession of a parcel WGR never proved it owned and, on the family's evidence, never did own.

4.1 No proof of WGR's title to the house parcel — Strong (Fact / Contention)

A claimant out of possession, suing someone who says she owns the land, recovers only on the strength of its own title (*Asher v Whitlock* (1865) LR 1 QB 1). The order covers exactly the parcel WGR did **not** recover in 1955. Nothing in the record shows the 1962 court looking at the 1938 conveyance, its plan, or whether the house parcel passed under it. The family's position is that the 1938 conveyance, like the 1939 tenancy, covered only the fields east of the house parcel. The order treats WGR's right to the house as a given.

In plain English: If someone takes your bike and says "it's mine," you have to prove it's yours to get it back through the courts. The company should have had to prove it owned the house. There's no sign it did. And the family says the 1938 sale only covered the fields, so there was nothing to prove.

4.2 The house parcel was never in the tenancy — Strong (Family evidence)

The 1939 revised tenancy covered only the fields east of the house parcel; Hywel has seen it. From 1928 John Williams paid rent on the fields only. If Frederick's 1949 tenancy replaced the 1939 tenancy, it too was fields only. That removes the only obvious basis for the 1962 claim: that Frederick's tenancy had ended and his household was holding over in the house. There was no tenancy of the house to end. The 1955 notice to quit could only end what was let, and the house was not let.

In plain English: You can only be told "your lease is up, get out" about a place you were renting. From 1928 the family rented the fields, not the house. So when the rental ended, it was the fields they had to give back, and they did in 1955. The house was never part of the deal, so the end of the rental couldn't be a reason to take it.

4.3 Tenant estoppel could not bind Mary — Strong (Fact / law)

A tenant cannot deny the landlord's title to what he rented. That rule bound Frederick for the fields. It never bound Mary: she was not a tenant, did not claim under Frederick, and refused every tenancy offered to her. The Court of

Appeal itself found she was in **adverse** possession from 1955, which confirms she was not treated as holding under any tenancy. Yet the order was made against her jointly with Frederick on no separate recorded basis.

In plain English: If you rent a place, you can't turn round and say the landlord doesn't own it. That rule trapped Frederick. Mary never rented anything. She said the house was hers and turned down every offer to rent it. So the rule that trapped Frederick didn't touch her.

4.4 Description of the land — Arguable (Hypothesis)

The only recorded description is "farmhouse and garden." No plan is recorded for the 1962 order. The 1987 appeal used a plan served in the later proceedings, which is not the 1962 order. On the two-parcel evidence, the problem is not a few feet at the garden edge: the order describes a whole parcel outside WGR's estate.

In plain English: The order says "farmhouse and garden" with no map. Where does the garden stop? More importantly, if the house parcel wasn't the company's, the order wasn't wrong by a few feet. It was about the wrong property altogether.

4.5 The order could not create title — Strong as a limit on its effect (law)

A possession judgment operates only between the parties. It cannot pass a legal estate or enlarge the 1938 conveyance. Whatever WGR did not own before 11 December 1962, it did not own after. Every later document that treats WGR, BP Pension Trust or BP Properties as owner of the house parcel on the strength of this order is building on something the order never gave.

In plain English: A judge saying "leave" doesn't make the winner the owner. It's like a teacher telling a kid to hand over a toy: that doesn't settle whose toy it is. If the company didn't own the house before the order, it didn't own it afterwards either.

5. Cause of action, parties and pleading flaws

The order never says why WGR was entitled to the house, and it treats two people in completely different positions as one.

5.1 Unstated cause of action; no finding on Mary's ownership — Strong (Fact / inference)

The record does not say whether possession was awarded because a tenancy ended, for trespass, or on proof of title. Without a tried and decided issue, the order **cannot create an issue estoppel on Mary's ownership**: no later court can treat it as having decided she did not own the house. In 1987 the Court of Appeal used it only to stop the limitation clock, never as an adjudication of title. Every later suggestion that her claim had been dealt with in 1962 is unsupported by the order itself.

In plain English: The order said "get out" but not why. Was it because a rental ended? Because she was trespassing? Because the company proved it owned the house? We don't know. So nobody can later say "a court already decided Mary didn't own the house", because there's no sign this court ever looked at that question.

5.2 One order for two different legal positions — Strong (Fact / inference)

Frederick was a former tenant of the fields. Mary was an owner-claimant in her own parcel. The order names them jointly and gives no separate basis for her. She was sued as "Mrs Buckler", the tenant's wife, not as Mary

Williams, the owner. A misnomer alone does not void a judgment, but the framing shows the pleading treated her as part of Frederick's household rather than as a separate owner. After Frederick's death the order was used against Mary alone, with no finding against her in her own right.

In plain English: Frederick and Mary were in totally different situations: he'd rented the fields, she said she owned the house. The order lumped them together as if she were just the tenant's wife. Then when Frederick died, the company used the same order against Mary alone, even though nobody had ever looked at her separate claim.

5.3 The fresh action proves the 1955 order did not reach her — Strong (Fact)

WGR already held a 1955 High Court possession order. It started a new action in 1962 naming Mary because the 1955 order was against Frederick alone and did not bind her. That is WGR's own admission that it needed a separate legal basis against Mary. The 1962 order is where that basis should appear, and it does not.

In plain English: If the 1955 order had already covered Mary, the company wouldn't have needed to take her to court again. The fact they did shows they knew it didn't. So they needed a real reason to evict her, and the 1962 order never gives one.

5.4 The 1955 order, read strictly — Arguable (Fact / Hypothesis)

Read for what it says and not what it implies, the 1955 order was a High Court order against Frederick alone, for possession of the farm let to him. It does not name Mary, does not mention the house parcel as separate, and determines nothing about her ownership. The judgment says the house was not taken in July 1955 out of concern for Mary's health. The order itself must be checked: if its terms describe only the land held under Frederick's tenancy, it never covered the house parcel at all. The 1962 claim leaned on the ambiguity of "whole farm" to make the house look like unfinished business from 1955.

In plain English: The 1955 order said: Frederick, give back the farm you rent. It didn't mention Mary or say the house was the company's. The company later acted as if "the whole farm" meant the house too. Take the order at its word, and it only covered what Frederick was renting.

5.5 Suing Frederick again for the same land — Arguable, mainly against Frederick (law)

Once a claim has gone to judgment it merges in that judgment; the claimant enforces it rather than suing again. If the 1955 order covered the house, WGR's course against Frederick was to enforce it, which after six years needed leave. Suing him afresh in a lower court for the same land was arguably barred by merger or cause-of-action estoppel. This mainly concerns Frederick, but it shows the 1962 action was an improvised route round an enforcement problem, not a proper determination of anyone's rights.

In plain English: Once you've won a case, you enforce the win you've got; you don't sue the same person again for the same thing. The company doing that in 1962 is odd, and it shows they were improvising.

5.6 What the 1962 court was not told — Strong if proven (Contention / Hypothesis)

WGR was a party to the 1939 tenancy and held the 1938 conveyance. If it pleaded the house as part of a farm let to Frederick while holding documents showing the house parcel was outside both, the court was misled. The family also points to the 1877/1928 arrangement and Mary's repeated refusals of a tenancy as facts the court should have weighed. A judgment obtained by concealing material facts can be set aside for fraud (see section 11).

In plain English: The company had the 1939 rental agreement and the 1938 sale papers in its own files. If those showed the house wasn't theirs, and they told the judge it was part of Frederick's farm anyway, the judge was

given a false picture. A court decision won that way can be cancelled.

6. Limitation and money flaws

If the house parcel left the tenancy in 1928, WGR's right to recover it was dead by about 1940, 22 years before the order was made.

6.1 WGR's claim to the house parcel was already barred — Strong if the 1928 split is proven (Family evidence / Contention)

From 1928 the house parcel was outside the tenancy (confirmed by the 1939 tenancy) and the Williams family occupied it without paying rent or holding any permission. Twelve years of that extinguished the paper owner's title by about 1940: under the Real Property Limitation Acts before July 1940, and the Limitation Act 1939 after. Time running against Bute continued to run against WGR when it bought in 1938. Once a title is extinguished, no later acknowledgment, tenancy offer, letter or court action can revive it.

There are two routes to the same result. If the 1877 arrangement vested the parcel in John Williams in 1928, WGR never had title to it. If it did not, 12 rent-free years gave the Williams family title by adverse possession by about 1940. Either way, in 1962 WGR had nothing to recover. An owner in possession needs no adverse possession, and WGR never held the house parcel for a single day.

In plain English: Back then, if you lived on land for 12 years without paying rent or asking permission, the old owner lost the right to throw you out, forever. The family stopped paying rent on the house parcel in 1928. So by about 1940 the house was theirs in law, even if the 1877 deal had never existed. By 1962 the company was trying to reclaim something it had lost 22 years earlier. You can't bring back a right that's already gone by sending letters or going to court.

6.2 Mesne profits presuppose the disputed title — Strong if 4.1 or 6.1 holds (law)

Mesne profits are damages for trespass and require an immediate right to possession throughout the period claimed. If the house parcel was Mary's, there was no trespass against WGR and no mesne profits. The money order charged an owner rent for her own home and cast her as a debtor, which is how her occupation was made to look like something she owed for.

In plain English: You can only charge someone rent for staying on your land if it's actually your land. If the house was Mary's, the company was billing her for living in her own home. That bill made her look like she was staying there on the company's say-so, when she wasn't.

6.3 Mesne profits before late 1956 were time-barred — Arguable (law)

Mesne profits carried a six-year limit under Limitation Act 1939 s.2(1). A 1962 claim for profits "since 1955" reached back more than six years. Limitation is a defence the defendant must raise; the court does not apply it on its own. So this is a flaw only if Mary raised it and was ignored, or was never properly before the court to raise it.

In plain English: There's a six-year deadline for claiming back money. The company asked for rent going back further than that. But the judge only applies the deadline if the person being sued asks. If Mary never got the chance to ask, that's unfair.

6.4 Mesne profits may not have been quantified — Weak (Hypothesis)

The record says only “an order for payment of mesne profits.” If the sum was left for later inquiry, the 1962 order was not yet a final money judgment. The 1963 enforcement suggests a figure was fixed at some point.

In plain English: The order may have said “pay the back-rent” without saying how much. A bill with no total isn’t really a bill yet. A small point, worth checking.

7. Procedure flaws

We do not know if Mary was properly served, whether she was heard, or whether the order was made in her absence.

7.1 Service, appearance and default — Arguable (Hypothesis)

The record is silent on service, appearance, representation and defence. Mary had recently lost a leg and was seriously unwell. In 1974 her solicitors complained, with enough force to take an appeal, that she had been given insufficient notice of the application to enforce this same order, so notice was a recurring problem. A default order against an independent owner-claimant, on an unstated basis, is the weakest possible foundation for later treating her ownership as defeated.

In plain English: We don’t know if Mary was properly told about the case, whether she went to court, or whether she argued back. If she lost just because she didn’t turn up, her claim to own the house was never heard at all. In 1974 her solicitors complained she hadn’t been given proper warning when the company tried to use this same order, so this kind of thing had happened before.

7.2 Consent or submission to jurisdiction — Arguable (Hypothesis)

If the value exceeded £100, the county court could proceed only with the parties’ written agreement to its jurisdiction. If Mary never signed one, the court had no power over the title dispute. If she was said to have consented to the order itself, whether that consent was informed, given her health and circumstances, is a separate question.

In plain English: If the house was worth more than the local court’s limit, the case could only stay there if both sides signed to agree. If Mary never signed, the court had no power. And if someone says she agreed to leave, we’d need to know whether she really understood what she was agreeing to.

7.3 Splitting enforcement — Weak (Fact)

The money was pursued against Frederick in 1963, with a suspended committal order. Possession was never executed in the twelve years the order was live without leave. This does not void the order, but it shows WGR using it as a debt instrument while leaving Mary in the house, which is not how an owner entitled to immediate possession behaves.

In plain English: The company chased Frederick for money straight away but left Mary in the house for twelve years. That doesn’t cancel the order. But real owners who’ve won a case usually take their property back. This looks more like pressure than ownership.

8. Every later use of the order, with criticism

The order was used five times after 1962. Each time it was treated as doing more than it did, and each time Mary's ownership went unexamined.

Year	Use	Criticism in brief
1963	Mesne profits enforced against Frederick, with a suspended committal order	Money enforced on a title never proved
1969	WGR sells to BP Pension Trust "including the farmhouse and garden"	A possession order is not title and cannot be sold as if it were
1974	BP abandons its own fresh action and applies to enforce the 1962 order	Used to avoid a trial of Mary's defence
1974	Leave to enforce granted; warrant replaced by "licence" letters	Permission offered to an owner means nothing
1987	Court of Appeal relies on the order to stop the limitation clock	Clock started in the wrong year for the house parcel

8.1 1963: enforcing the money — Arguable (Fact)

WGR pursued the mesne profits against Frederick, including a suspended committal order: the threat of prison for non-payment. That enforced a money claim that depended entirely on WGR owning the house parcel (6.2), which had never been proved.

In plain English: The company threatened Frederick with prison over back-rent for a house it had never proved it owned.

8.2 1969: selling the house parcel on the back of the order — Arguable (Fact / Contention)

WGR sold to BP Pension Trust in December 1969, including the farmhouse and garden. A purchaser takes only what the seller owns. The 1962 order gave WGR no title (4.5), so if the house parcel was not WGR's, the sale passed nothing in it. The order may have made the house look like WGR's to sell, but it could not make it so.

In plain English: You can't sell something you don't own. Having a court order saying "leave" doesn't make the house yours to sell. If the house was Mary's, BP bought nothing when it "bought" it.

8.3 1974: dropping a fresh trial in favour of the old order — Strong (Fact)

In 1974 BP Pension Trust began a new possession action against Mary. She filed a defence under the Limitation Act 1939. That action would have required BP to prove its case and face her defence at trial. Instead, on 17 September 1974 BP switched to asking leave to enforce the twelve-year-old 1962 order. The fresh action was adjourned and never heard, so Mary's claim was never extinguished; it was sidestepped. The 1962 order was being used to get her out without her case ever being tried.

In plain English: In 1974 BP took Mary to court again, and she fought back. Rather than let a judge hear her side, BP dug out the old 1962 order and tried to use that instead. Her case was put on hold and never heard. The old order was a way round letting her argue she owned the house.

8.4 1974: leave to enforce a stale order — Arguable (Fact)

After six years a possession order could not be enforced without the court's leave. Judge Watkin Powell gave leave on 19 September 1974, three months inside the twelve-year window, to a company that was not the party that won it. Mary's solicitors appealed on the ground she had insufficient notice. No recorded consideration was given to whether it was just to enforce a twelve-year-old order against an occupier asserting ownership and a limitation defence. And if WGR's title was extinguished by about 1940 (6.1), the twelve-year window protected nothing: it preserves a right, it cannot create one.

In plain English: Old court orders need a judge's permission before they can be used. A judge gave that permission two days after asking, to a different company, without giving Mary proper warning, and without checking whether she owned the house. And a time window only keeps a right alive if there was a right to begin with.

8.5 1974: the "licence" letters — Strong (Fact / law)

On 31 October 1974, the date the warrant was due, BP sent two letters offering Mary rent-free occupation for life, and the warrant was withdrawn. The letters stood in place of enforcing the 1962 order. The Court of Appeal later held that these unilateral letters made her occupation permissive and stopped her clock, even though she never accepted them. That holding has been criticised (Wallace, [1994] Conv 196). More fundamentally, permission is something only an owner can give. If the house parcel was Mary's, the letters gave her permission to live in her own home, which is legally empty. The letters depended on the 1962 order's premise that WGR's successor owned the house.

In plain English: Instead of using the order to evict her, BP wrote to Mary saying "you can stay for free for life." Later the court said that letter turned her into a guest, even though she never agreed. But you can't give someone permission to live in their own house. If the house was hers, the letter meant nothing.

8.6 1987: the Court of Appeal's reliance — Strong criticism (Fact / Contention)

The Court of Appeal treated the 1962 action as brought in time, because it started the adverse possession clock in February 1955, when Frederick's tenancy ended. It then applied *St Marylebone Property Co v Fairweather* [1963] AC 510, *Lougher v Donovan* [1948] 2 All ER 11 and *W T Lamb & Sons v Rider* [1948] 2 KB 331: a judgment in an action begun in time can be enforced within a further twelve years. Five criticisms follow.

1. **Wrong start date for the house parcel.** The 1955 date is right only for the fields. For the house parcel, outside the tenancy since 1928, the clock ran from 1928 and finished around 1940 (6.1).
2. **The authorities presuppose a surviving title.** Each of those cases concerns a claimant whose title still existed when it sued. None allows a judgment to revive a title already extinguished.
3. **No basis was identified against Mary.** The court treated the order as effective against her without asking what cause of action it rested on (5.1, 5.2).
4. **Both parcels treated as one.** The 1916 tenancy of "the whole farm" was cited as if still in force, ignoring the 1928 split and the 1939 tenancy. The merged title that BP had registered made the two parcels look like one.
5. **Ownership was never tried.** Not in 1962, not in 1974, not in 1987. Her defence was run as adverse possession from 1955, so the fields defence was stretched over her house parcel.

The obstacle: the 1987 decision binds those claiming through Mary, and a court will ask why the 1928 case was not argued then. The answer has to be that the documents proving it were not available to the family, or were withheld (section 11).

In plain English: The 1987 court said: the company sued Mary in 1962, less than 12 years after 1955, so it was in time. But 1955 was when the fields rental ended. For the house, the clock started in 1928 and ran out around 1940. The court used cases about owners who still had their rights, not ones who'd already lost them. It never asked what the 1962 order was based on, treated two parcels as one, and never looked at whether Mary owned the house. It answered the wrong question.

9. Force, stealth and permission

English law has an old rule for rights to land built up over time: they must be gained *nec vi, nec clam, nec precario*, meaning not by force, not in secret, and not by permission. A right obtained any of those three ways does not count. On the family's account, the claim to Mary's parcel was built from exactly those three things, and the 1962 order sits at the centre of each.

Strictly, the maxim governs people claiming rights by long use, and WGR and BP claimed by paper title. It is used here as a framework: it shows that none of WGR's or BP's acts could substitute for the title they never proved.

Element	How the 1962 order served it	Status
Force	Possession ordered and mesne profits enforced with a suspended committal; 1974 warrant issued; pressure on a seriously ill, disabled occupier; the water supply cut off (date to be established)	Fact (orders, warrant); Contention (water)
Stealth	The 1928 split, the 1938 conveyance plan and the 1939 tenancy not put before the court; Mary sued as the tenant's wife rather than as the owner; her 1974 defence sidestepped by switching to the old order	Contention / Fact (1974 switch)
Permission	Three offers of a tenancy of her own parcel; mesne profits casting her as owing for occupation; the 1974 "licence" letters sent in place of the 1962 warrant	Fact (offers, letters); Contention (count of three)

Each element depends on the 1962 order's premise that WGR owned the house parcel. Without that premise the force was an attempt to remove an owner, the silence was concealment, and the permission was meaningless.

In plain English: There's an old rule that you can't gain a right to land by bullying, by sneaking, or by getting someone to act as your guest. The family's story is that the company did all three. It used court orders and threats to push Mary out. It kept quiet about the papers showing the house was hers. And it kept trying to make her a tenant or a guest, so that her living there looked like it was by the company's kind permission. All three only make sense if the company owned the house, and that was never proved.

Why it matters. If a court is asked to correct the register, one test is whether it would be unjust not to (LRA 2002 Sch 4 para 3(2)). A documented pattern of pressure on a disabled widow, based on an order that never proved the

company's ownership, goes to that test. Dated evidence is needed for each item, especially the water supply.

10. Evidence that would prove or disprove each flaw

Three documents matter most: the 1939 tenancy, the 1962 court file and the 1938 conveyance plan. Everything else supports them.

Document	What it would show	Points it tests	Where / status
1939 revised tenancy	House parcel excluded; fields only	4.2, 6.1, 8.6	Seen by Hywel; location of original or copy to confirm
1962 plaint and particulars	Cause of action, parcels, plan, sum claimed, any abandonment	3.3, 4.4, 5.1, 5.6, 6.3, 6.4	Glamorgan Archives, Cardiff County Court records (ACA)
1962 cause and minute books	Service, appearance, defence, default or consent, exact order	3.2, 7.1, 7.2	Glamorgan Archives (ACA)
1956 and 1963 valuation lists	Net annual value of the farmhouse and garden	3.1, 3.5	Glamorgan Archives or TNA
1938 conveyance and plan	Whether the house parcel passed to WGR	4.1, 8.2	HMLR pre-registration deeds (bundle N610CGV); Bute estate papers
1877 agreement; 1928 quarry exit	House parcel vested in the Williams family	6.1, section 2	Family papers (missing); Bute estate records; quarry lease surrenders; local press
Rent books or estate accounts, 1916–49	Rent reduced from 1928 to cover the fields only	6.1	Bute estate papers
1949 tenancy to Frederick	Whether it included the house	4.2	Estate or WGR records
1955 High Court order	Its exact words: parties and land	5.4, 5.5	TNA J-series
1974 fresh action: pleadings and adjournment	Mary's defence and why it was never heard	8.3	Glamorgan Archives (ACA)
1974 leave application and notice	Who applied, notice given, what the judge considered	8.4	Glamorgan Archives (ACA)
1974 newspaper article	Mary asserting ownership; a lawyer saying she had a case	5.6, 8.3	Western Mail / Penarth Times; NLW microfilm or British Newspaper Archive
Water supply records	Date and circumstances of the cut-off	9	Water authority records; family recollection
1986–87 pleadings and trial bundle	What was and was not before the Court of Appeal	8.6, 11	TNA J-series; solicitors' files

In plain English: This is the shopping list. The 1939 rental agreement proves the house wasn't rented. The 1962 court file shows what the judge was told and whether Mary was there. The 1938 sale map shows whether the company ever bought the house. Get those three and most of this document moves from "the family says" to "the papers show."

11. What can be done about the order now

The realistic route is to show the order, and the 1987 reliance on it, rested on suppressed documents. That opens the door to setting both aside for fraud.

11.1 Setting aside for fraud — the strongest route if concealment is proven

A judgment obtained by fraud can be set aside in a fresh action. Under *Takhar v Gracefield Developments Ltd* [2019] UKSC 13, the claimant does not have to show the fraud could not have been discovered earlier with reasonable diligence. It must show that the winning side deliberately misled the court, and that the truth would probably have changed the result. Here that means proving WGR, and later BP, held the 1938 conveyance and 1939 tenancy showing the house parcel was outside their title, and presented it as part of the let farm anyway (5.6). The same reasoning reaches the 1987 judgment if it too was obtained without those documents being disclosed. This also answers the question “why wasn’t 1928 argued in 1986?”: because the papers proving it were withheld.

In plain English: If you win a court case by hiding the papers that show you’re wrong, the court can cancel your win, even decades later, and even if the other side could have dug the truth out sooner. So if the company kept the 1939 rental agreement and the 1938 sale papers quiet, both the 1962 order and the 1987 ruling can be challenged.

11.2 Postponing the time limit — Limitation Act 1980 s.32

Where a relevant fact has been deliberately concealed, time does not start until the claimant discovered it or could reasonably have done so. The test is strict: concealment must be intentional, not careless (*Canada Square Operations Ltd v Potter* [2023] UKSC 41). When and how the family obtained the 1939 tenancy matters here, because time runs from then.

In plain English: Normally there are deadlines for going to court. But if someone deliberately hid the truth from you, the clock only starts when you find out. So it matters exactly when the family found the 1939 agreement.

11.3 Want of jurisdiction — useful but not enough on its own

If the house was rated over £100 (3.1), the order was arguably made without power. A void order can in principle be challenged at any time. But the Court of Appeal treated it as valid in 1987, and that decision binds the parties’ successors until it is itself set aside. So this point works best alongside 11.1, not instead of it.

In plain English: Proving the local court had no power in 1962 is useful, but the 1987 court already treated the order as fine. That 1987 ruling has to be knocked out first, and hiding evidence is the way to do it.

11.4 The obstacles, plainly

- The 1987 judgment binds everyone claiming through Mary until it is set aside.
- A court will ask why the 1928 case was not run in 1986; the answer must be suppression, backed by evidence.
- The parties are dead, the house was demolished in 1988, and the land has since been developed and sold on. Even a successful challenge is more likely to produce compensation or a formal correction of the record than the return of the land.
- Fraud is a serious allegation. It must be pleaded with particulars and proved with documents, not inference.

In plain English: It's a hard road. The 1987 ruling stands until it's overturned. The family has to show the papers were hidden, not just that they're missing. And because homes now stand on the land, winning probably means money or putting the record right, not getting the land back. But it isn't impossible if the documents turn up.

12. Caveats and sources

- The 1962 order itself has not been seen. Every point about its wording, parcels, sums and procedure is drawn from the 1987 judgment's account and must be checked against the Glamorgan Archives file.
- The 1939 tenancy has been seen by Hywel. A court will need the document itself or a certified copy.
- The 1877 agreement, the 1928 transfer and the extent of the 1938 conveyance remain the family's case until the documents are produced. The 1987 judgment records that Mary's title documents were never produced.
- The judgment text relied on is the transcript published by Estates Gazette. The section of the County Courts Act 1959 setting the title limit is taken from its 1984 successor (s.21(2)).

Sources

- BP Properties Ltd v Buckler [1987] EWCA Civ 2, Estates Gazette — <https://www.estatesgazette.co.uk/legal/bp-properties-ltd-v-buckler/>
- County Courts (Jurisdiction) Bill, HL Deb 31 January 1963 — <https://api.parliament.uk/historic-hansard/lords/1963/jan/31/county-courts-jurisdiction-bill>
- County Courts Jurisdiction Order 1965, HL Deb 14 December 1965 — <https://hansard.parliament.uk/Lords/1965-12-14/debates/b245e3bd-0f76-41ef-94ee-70584429e698/CountyCourtsJurisdictionOrder1965>
- Cardiff County Court records, Archives Hub — <https://archiveshub.jisc.ac.uk/search/archives/ffb1d4a9-e79a-3144-9fb1-5a91d8a1ec80>